

		relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; or (4) when the defendant makes partial representations but also suppresses some material fact.” (<i>Id.</i> at p. 1260 [citation omitted].) GM did not have any contact with Plaintiff, and GM did not make any representations to the Plaintiff. (Jensen Decl., ¶ 9.) Plaintiff does not otherwise present any evidence giving rise to a duty to disclose, including that GM had exclusive knowledge of material facts not known to Plaintiff or made partial representations while suppressing some material fact. While Plaintiff submits evidence employees at GM’s authorized repair facility represented the vehicle was operating as intended and safe to drive (Bennett Decl., ¶¶ 3-8), Plaintiff does not present evidence these employees were agents of GM, had exclusive knowledge of material facts not known to Plaintiff, or concealed any material facts. The Court GRANTS summary adjudication of the fourth cause of action.
13	Doe #1 v. Roe 1 2022-01299923 Motion for Summary Judgment and or Adjudication	Defendant The General of the Assemblies of God’s Motion for Summary Judgment or Alternatively Summary Adjudication is GRANTED. Defendant moves for an order granting summary judgment in its favor and against Plaintiff John Doe #1 J.H. (“Plaintiff”), or in the alternative, for summary adjudication of the 32 issues listed in its notice. Plaintiff filed this case under Code of Civ. Proc., § 340.1, the “revivor” statute for child sexual abuse. Plaintiff alleges he was sexually abused in 1983-1985 as a minor at a local church in Riverside, the Pedley Assembly of God Church (“Church”). (First Amended Complaint (“FAC”), ¶¶ 4, 37; UMF Nos. 18, 24, 32.) Plaintiff is unable to identify the alleged wrongdoer, whom he names simply as “Jerry W.” Plaintiff alleges the alleged wrongdoer was involved in a youth program at the Church, the church’s “Royal Rangers” group. (UMF No. 18.) Plaintiff has five remaining claims against Defendant: (1) Sexual Abuse of a Minor (First Cause of Action), (2) Intentional Infliction of Emotional Distress (“IIED”) (Second Cause of Action), (3) Negligence (Fourth Cause of Action), (4) Negligent Supervision (Fifth Cause of Action), and (5) Battery (Seventh Cause of Action). All the claims are based on the alleged sexual abuse by Jerry W. (UMF No. 35; FAC, ¶ 5.) Legal Standard

"A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant seeking summary judgment meets the burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c, subd. (p)(2); *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].)

Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of fact exists as to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar, supra*, 25 Cal.4th 826 at pp. 849–850.) The plaintiff must set forth specific facts and may not merely "rely on the allegations or denials of its pleadings" (Code Civ. Proc., § 437c, subd. (p)(2).)

In determining whether a triable issue of material fact exists, "the moving party's affidavits are strictly construed while those of the opposing party are liberally construed." (*Villacres, supra*, 189 Cal.App.4th at p. 575.) "[T]he facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true." (*Ibid.*)

Vicarious Liability

Defendant argues Plaintiff's claims fail as a matter of law because a tortfeasor's sexual abuse of a minor cannot be attributed to the entity on a vicarious liability theory of respondeat superior. Plaintiff's claims are all based on the alleged sexual abuse by Jerry W. when Plaintiff was a minor. (See FAC, ¶ 5.)

Employers are not liable for child abuse perpetrated by their employees under the doctrine of respondeat superior. (*John R. v. Oakland Unified School District* (1989) 48 Cal.3d 438 [school district not liable for sexual abuse of student by teacher under respondeat superior]; *Rita M. v. Roman Catholic Archbishop* (1986) 187 Cal.App.3d 1453, 1461 [church not liable for sexual abuse of child by priest]; *Jeffrey E. v. Central Baptist Church* (1988) 197 Cal.App.3d 718

	[church not liable for sexual abuse of minor by Sunday school teacher].) Accordingly, to the extent Plaintiff seeks to hold Defendant indirectly liable under the doctrine of respondeat superior, the claims fail as a matter of law. Ratification To the extent Plaintiff seeks to hold Defendant directly liable for his claims under a ratification theory (see FAC, ¶ 17), the claims fail. "Ratification is the subsequent adoption by one claiming the benefits of an act, which without authority, another has voluntarily done while ostensibly acting as the agent of him who affirms the act and who had the power to confer authority." (<i>Reusche v. Cal. Pacific Title Ins. Co.</i> (1965) 231 Cal.App.2d 731, 737.) "[A] principal is not bound by ratification unless he acts with knowledge of all the material facts involved in the unauthorized transaction, particularly with knowledge of the acts of the person who assumed to act as his agent. This knowledge is equally necessary whether the ratification be express or implied." (<i>Bate v. Marsteller</i> (1959) 175 Cal.App.2d 573, 582.) Here, the undisputed facts show Defendant had no knowledge or notice of any wrongdoing. Namely, neither Plaintiff nor anyone else ever reported the alleged abuse to Defendant. (UMF Nos. 33, 85.) Defendant first heard of Plaintiff's allegations when it was served with the FAC in this case on June 13, 2024. (UMF No. 34.) In addition, Plaintiff is unable to provide any facts that Defendant ratified the alleged sexual abuse by Jerry W. (UMF No. 84.) Existence of a Duty/Special Relationship Defendant argues Plaintiff's claims fail because it owed no duty to Plaintiff. Defendant contends an essential element of any claim is the existence of a duty. As an initial matter, the argument fails as to the second and seventh causes of action for IIED and Battery, respectively. Duty is not an essential element of either of these intentional torts. (See <i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161 [listing elements of IIED]; <i>Piedra v. Dugan</i> (2004) 123 Cal.App.4th 1483, 1495 [listing elements of Civil Battery].) Duty is an essential element of the remaining first, fourth and fifth causes of action for Sexual Abuse of a Minor, Negligence, and Negligent Supervision, respectively. "A plaintiff must satisfy both the special relationship test and the <i>Rowland v. Christian</i> (1968) 69 Cal.2d 108] factors before a duty to protect the plaintiff from third party harm
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	can be imposed on the defendant.” (<i>Brown v. USA Taekwondo</i> (2021) 11 Cal.5th 204, 212-213 [affirming this two-part framework].) If there is no “special relationship” in the first instance, then there is no need to analyze the <i>Rowland</i> factors. (<i>Id.</i> p. 222.) “In a case involving harm caused by a third party, a person may have an affirmative duty to protect the victim of another's harm if that person is in what the law calls a ‘special relationship’ with either the victim or the person who created the harm. [Citation.] [¶] A special relationship between the defendant and the victim is one that ‘gives the victim a right to expect’ protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that ‘entails an ability to control [the third party's] conduct.’ [Citation.] Relationships between parents and children, colleges and students, employers and employees, common carriers and passengers, and innkeepers and guests, are all examples of special relationships that give rise to an affirmative duty to protect. [Citation.]” (<i>Brown, supra</i>, 11 Cal.5th pp. 215-216.) “The key in each [special relationship] is that defendant’s relationship with ... the tortfeasor ... places the defendant in the best position to protect against the risk of harm . . . Thus, the defendant's ability to control the person who caused the harm must be such that “if exercised, [it] would meaningfully reduce the risk of the harm that actually occurred.” (<i>Barenborg v. Sigma Alpha Epsilon Fraternity</i> (2019) 33 Cal.App.5th 70, 78.) Here, Defendant’s evidence establishes it did not have a special relationship with either Plaintiff or the alleged wrongdoer, Jerry W. Defendant is a fellowship of over 7,300 affiliated local churches, which has nearly 2.5 million members and adherents, and credentialed ministers. It has no role regarding other staff members or volunteers of local churches or their programs, including this Church’s Royal Rangers group. (UMF Nos. 9, 11, 17, 18, 22, 29-31.) Defendant’s religious doctrines prohibit it from interfering with the local church’s employment practices. (UMF No. 30; Kesler Decl., ¶ 15.) In addition, individual parishioners of a church are members or attendees of the local church, not of Defendant. (UMF No. 10.) Defendant had no control or oversight over and no relationship with Plaintiff. (UMF Nos. 12, 14.) Plaintiff was not a member or attendee of Defendant. (UMF No.13.) Plaintiff attended a local church in Riverside, California. (UMF No. 12.) Based on this evidence, Defendant had no control or oversight over Plaintiff, nor was it in a position to control Jerry W. Therefore, no special relationship existed and there is no need to analyze the <i>Rowland</i> factors. Defendant has met its initial burden of establishing no duty to protect Plaintiff existed.
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Fourth Cause of Action: Negligence

There are four essential elements of a negligence claim: duty, breach, causation, and injury. (*Vasilenko v. Grace Family Church* (2017) 3 Cal.5th 1077, 1083.) Here, in addition to failing on the first element, as discussed above, these causes of action also fail on the second element. Even if Defendant owed Plaintiff a duty, there is no evidence that Defendant breached any duty. Individual parishioners of a church are members or attendees of the local church, not Defendant. (UMF No. 10.) Defendant had no control or oversight over and no relationship with Plaintiff. (UMF Nos. 12, 14.) Plaintiff was not a member or attendee of Defendant. (UMF No.13.) Plaintiff attended a local church in Riverside, California. (UMF No. 12.) Since Defendant did not have any connection with Plaintiff or a special relationship, it could not breach any duty. Defendant did not become aware of any allegations against Jerry W. until service of the FAC on June 13, 2024. (UMF No. 34.)

Fifth Cause of Action: Negligent Supervision

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. Negligence liability will be imposed upon the employer if it knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815; see *Rancho Cucamonga Central School Dist. v. Superior Court* (2025) 116 Cal.App.5th 718, 721 ["the school district may be liable for hiring, supervising, or retaining an employee if the district's supervisory personnel had actual or constructive knowledge of the employee's dangerous propensities."].)

There is no evidence that Defendant had any such knowledge. Defendant never employed Jerry W. (UMF No. 27.) Jerry W. was never an agent of Defendant. (UMF No. 28.) Defendant had no knowledge of or involvement with Jerry W., who is alleged to have been a youth leader at the Church. Defendant had no role regarding staff members or volunteers of local churches or their programs, including the Church's Royal Rangers group. (UMF Nos. 9, 11, 17, 18, 22, 29-31.) Defendant's religious doctrines prohibit it from interfering with the local church's employment practices. (UMF No. 30; Kesler Decl., ¶ 15.)

IIED

"The elements of a cause of action for intentional infliction of emotional distress are (i) outrageous conduct by defendant, (ii) an intention by defendant to cause, or reckless disregard of the probability of causing, emotional distress, (iii) severe emotional distress, and (iv) an actual and proximate causal link between the tortious conduct and the emotional distress.

		[Citation.] The [c]onduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (<i>Nally v. Grace Community Church</i> (1988) 47 Cal.3d 278, 300.) The evidence shows none of the elements can be established. As discussed, Defendant was not aware or received notice of the alleged abuse by Jerry W. Defendant had no relationship with Plaintiff. Plaintiff has no evidence that Defendant intended to cause Plaintiff injury or engaged in conduct realizing that injury would result. Seventh Cause of Action: Battery "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching."(<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 669.) As discussed above, the evidence establishes Defendant had no contact with Plaintiff. Thus, Plaintiff cannot establish the first element. Statute of Limitations: IIED and Battery Defendant argues the second and seventh causes of action for IIED and Battery are barred by the two-year statute of limitations under Code Civ. Proc., § 335.1 because the abuse occurred during 1983-1985 and Plaintiff did not file his complaint until December 29, 2022. Plaintiff, however, commenced this action under Code of Civil Procedure section 340.1, the "revivor" statute for child sexual abuse. These causes of action arise out of the alleged child sexual abuse. None of the cases Defendant cites hold that section 340.1 does not revive causes of action that expressly arise out of or are based on alleged child sexual abuse. Therefore, Defendant has not established these claims are time barred. Based on the foregoing, Defendant has met its initial burden. Plaintiff has not filed an opposition. Therefore, he has not met his burden of establishing triable issues of material fact. Defendant's motion for summary judgment is granted.
14	Huynh v. Williams 2024-01436961 Motion to appear P:ro Hac Vice	Lloyd E. Kelley, Esq. has complied with Cal. Rules of Court, rule 940. Therefore, the unopposed application should be granted. The application of attorney Lloyd E. Kelley, Esq. to appear pro hac vice as counsel for defendant Gerard Richard Williams III in this matter is hereby GRANTED pursuant to California Rules of Court, Rule 9.40.